

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.3 — Manitoba: The Accessibility for Manitobans Act, 2013

Section 2.2 documented Ontario's twenty-year record under the AODA, the longest provincial accessibility track record in Canada. Section 2.3 turns to the second province to enact comprehensive accessibility legislation: Manitoba. The *Accessibility for Manitobans Act* (the AMA) received Royal Assent on December 5, 2013, eight years after Ontario's AODA and six years before the federal *Accessible Canada Act*. The AMA was the first provincial accessibility legislation enacted west of Ontario. It made Manitoba the second of six Canadian provinces, eventually, to build comprehensive accessibility architecture; Alberta is the only one of those six—and the only English-speaking province with a population over one million—that has not.

The Manitoba comparison matters for this Part Two analysis for three specific reasons. First, Manitoba is structurally similar to Alberta in ways that defeat the "we are different" objection often raised against extending Ontario's model westward. Manitoba is a Western Canadian prairie province with a population of approximately 1.5 million (less than one-third of Alberta's), a substantial rural geography, a significant Indigenous population, an economy historically rooted in agriculture and resource extraction, and a political culture in which both centre-right (Progressive Conservative) and centre-left (NDP) governments have alternated in power across the period during which the AMA was developed and operationalized. Manitoba's accessibility legislation has been administered by both Conservative and NDP governments. Neither has repealed it. Both have incrementally advanced it. The cross-partisan operational continuity in Manitoba is direct evidence that comprehensive accessibility legislation, once enacted, becomes the new baseline rather than a partisan flashpoint.

Second, the AMA's design represents a deliberate adaptation of the Ontario template to a smaller-scale jurisdiction. The Manitoba legislation borrowed the AODA's structure of multi-standard architecture, mandated public-sector accessibility plans, and an Accessibility Advisory Council, while making different choices on review timelines (five-year cycles rather than Ontario's three-year), enforcement architecture, and the pace of standards development. The adaptations are documented and provide useful design precedent for smaller jurisdictions and for Alberta's eventual blueprint Part Three will propose.

Third, Manitoba's record demonstrates a pattern Section 2.4 (Nova Scotia), Section 2.5 (British Columbia), and Section 2.6 (Saskatchewan) will reinforce: provincial accessibility legislation has been enacted by progressively smaller and more diverse jurisdictions across Canada. The "Alberta is too unique" or "Alberta cannot afford this" arguments are structurally indefensible when Manitoba (population 1.5 million), Nova Scotia (one million), Saskatchewan (1.2 million), and Newfoundland and Labrador (530,000) have all built comprehensive accessibility legislation. Alberta's population (4.8 million) is larger than the combined populations of Manitoba, Nova Scotia, and Saskatchewan. The comparator arithmetic does not favour the inaction Alberta has chosen.

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Origin and Passage

Bill 26, *The Accessibility for Manitobans Act*, was introduced in the Manitoba Legislative Assembly during the 40th Legislature (Second Session) and received Royal Assent on December 5, 2013, under the New Democratic government of Premier Greg Selinger. The Bill passed with cross-party support; the disability-community advocacy that had built support for the legislation reached across the political spectrum, including the Manitoba League of Persons with Disabilities, the Independent Living Resource Centre Manitoba, and other organizations of and for persons with disabilities.

The legislation built on an earlier statute, the *Accessibility Advisory Council Act* (S.M. 2011, c. 37), which had established an Accessibility Advisory Council to make recommendations to the Manitoba government on accessibility matters. The 2011 Council Act was a structural precursor without the substantive standards-development authority the 2013 AMA would provide. The AMA, in effect, gave the Council the legislative framework needed to develop binding accessibility standards through regulation, transformed the Council from an advisory body into the structured upstream input mechanism for a broader provincial implementation, and created the legal architecture through which Manitoba's accessibility commitments became enforceable rather than aspirational.

The AMA's preamble is significant. It cites the UN CRPD explicitly:

WHEREAS under the United Nations Convention on the Rights of Persons with Disabilities, which Canada ratified in 2010, member states are expected to take appropriate measures to ensure accessibility and independent living.

The preamble also cites the Canadian Charter of Rights and Freedoms, the Manitoba Human Rights Code, and the principle that systemic, proactive barrier removal complements human-rights enforcement. The preamble's structure is the standard template every subsequent Canadian provincial accessibility statute (Nova Scotia 2017, BC 2021, Saskatchewan 2023) has built upon. The ground the Manitoba preamble laid — that accessibility is a treaty obligation, a Charter equality matter, and a complement to existing human-rights protection — established the legal-foundational rationale that subsequent provinces have drawn on.

The legislative purpose is set out in Section 2 of the AMA: to achieve significant progress towards full accessibility for Manitobans by establishing accessibility standards and removing barriers that disable people. The AMA does not, in the operative provisions, set a single comprehensive deadline equivalent to Ontario's January 1, 2025 commitment. Manitoba instead built a rolling-deadline architecture in which each individual accessibility standard sets its own implementation timeline through regulation, with mandatory review every five years. The design is structurally less dramatic than Ontario's twenty-year horizon but, in operation, has produced more predictable incremental progress.

The Five Accessibility Standards

The AMA, like the AODA, structures its substantive content through accessibility standards. The Manitoba framework defines five standards, each developed through a structured committee process and each

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implemented through regulation. The five standards, identified by the Manitoba Accessibility Office as the building blocks of the Act, are: the *Accessibility Standard for Customer Service*; the *Accessibility Standard for Employment*; the *Accessibility Standard for Information and Communications*; the *Accessibility Standard for Transportation*; and the *Accessibility Standard for the Design of Outdoor Public Spaces*.

The *Accessibility Standard for Customer Service* was the first standard developed under the AMA and was made law in 2015. The standard requires covered organizations (the Manitoba government, public-sector bodies, private organizations of various sizes, and non-profit organizations) to develop policies for accessible customer service, train staff on accessibility, accommodate the use of assistive devices, service animals and support persons, provide accessible feedback mechanisms, and make accessibility information publicly available. The Standard's first mandatory five-year review was launched in 2024-2025 by the Accessibility Advisory Council, with public consultation through the EngageMB portal. The review's findings will inform the next round of amendments to the Standard.

The *Accessibility Standard for Employment* was the second standard developed and is in force. The standard covers accessible recruitment, hiring, accommodation, retention, and workplace emergency response. It applies to the Manitoba government and a broadening set of public-sector and private-sector organizations on a phased compliance schedule.

The *Accessibility Standard for Information and Communications* is in force and requires covered organizations to provide accessible information in print, in-person, online, and in other formats. Web-content accessibility is governed by the Web Content Accessibility Guidelines (WCAG), Level AA. The Standard's coverage is being expanded incrementally to include digital communication contexts not addressed in the original drafting.

The *Accessibility Standard for Transportation* is currently in development by an advisory committee under the Council. The Standard, when enacted, will address accessibility barriers Manitobans encounter while travelling for work, education, errands, social participation, and other aspects of daily life. The development process has involved extensive consultation with persons with disabilities, transit operators, school transportation providers, and other affected stakeholders.

The *Accessibility Standard for the Design of Outdoor Public Spaces* is also currently in development. This Standard will focus on access to areas outside the jurisdiction of the Manitoba Building Code — sidewalks, pathways, parks, recreational trails, beach access routes, and other outdoor environments that are designed and constructed for public use. The Standard is intended to complement the Manitoba Building Code's existing accessibility provisions for buildings and to extend accessibility requirements into the outdoor public realm.

The pace of standards development under the AMA has been incremental rather than simultaneous. Ontario's AODA created all five of its standards at the outset and consolidated them under the Integrated Accessibility Standards Regulation in 2011. Manitoba's AMA developed its standards sequentially, beginning with customer service (the most cross-sectorally applicable) and proceeding through employment, information and communications, and the two standards still in development. The sequential approach has produced slower full-spectrum coverage than Ontario's approach but has allowed Manitoba's smaller administrative apparatus to focus implementation resources on each standard in turn.

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Both approaches are valid design choices; neither is empirically superior. The point for this Part Two analysis is that Manitoba has been actively building comprehensive accessibility architecture for thirteen years, and Alberta has not begun.

The Implementing Institutions

The AMA's implementing architecture is, like the AODA's, distributed across multiple institutions with defined statutory roles.

The Accessibility Advisory Council. The Council is the central advisory body under the AMA, continued from the earlier 2011 Accessibility Advisory Council Act. It comprises eight members appointed for their experience and expertise across the disability community and affected stakeholder sectors. The Council advises the Minister responsible for Accessibility on priorities for standards development, the content and timelines of proposed standards, broader measures and policies to improve accessibility, and any other accessibility matter on which the Minister seeks advice. The Council's structure embeds disability-community input at the centre of standards development rather than at the periphery, in keeping with the *Nothing Without Us* commitment that has been a defining feature of every provincial and federal accessibility statute examined in Part Two so far. The current Chair, John Graham, has emphasized publicly the Council's role as the channel for Manitobans' accessibility experience to enter the standards-development process.

The Manitoba Accessibility Office (MAO). The MAO, located within the Department of Families, is the administrative arm of the AMA. It serves as secretariat to the Accessibility Advisory Council and its committees, supports public consultation processes, coordinates implementation across government departments, and is the public-facing point of contact for accessibility inquiries (MAO@gov.mb.ca, 204-945-7613).

The Accessibility Compliance Secretariat. Also located within the Department of Families, the Compliance Secretariat monitors compliance with accessibility legislation across stakeholders in the private, non-profit, and public sectors. The Secretariat is the operational unit through which the AMA's compliance and enforcement activities are conducted.

The Director. A Director is appointed under Section 22(1) of the AMA with statutory authority to investigate compliance, issue compliance orders, and take enforcement action against non-compliant organizations. The Director's authority is the operational counterpart to the Director's role under the Ontario AODA.

Standards Development Committees. For each accessibility standard, the Council may establish a committee of technical experts, sector representatives, and other parties familiar with the specific subject matter of the standard. Committee membership is structured to include persons with disabilities and representatives of the organizations that will have obligations under the standard. The committees produce input that feeds into the Council's recommendations to the Minister.

Designated Public Sector Bodies. Under the AMA and its regulations, designated public-sector bodies are required to prepare and update accessibility plans on a defined cycle, in consultation with persons with

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disabilities or organizations that represent them. The plan requirement parallels the AODA's requirement and the federal ACA's requirement. The architecture across all three jurisdictions is built around the recognition that public-sector accessibility leadership is a precondition for broader societal change.

The institutional design is, in operational terms, a smaller-scale version of the Ontario architecture. The institutions are fewer, the budgets are smaller, and the staff complements are leaner. The framework is nevertheless functional. Manitoba has produced binding standards, run public consultations, conducted statutory reviews, and built operational implementation infrastructure for thirteen years. The institutional scale is a function of Manitoba's overall scale, not a function of any inherent limitation in the legislative model. Alberta, with three times Manitoba's population, would build at proportionate scale, with proportionate institutional capacity. The Manitoba example demonstrates that the model works at smaller scale; the model would, accordingly, work at larger scale.

The Compliance and Enforcement Architecture

The AMA's compliance architecture, like the AODA's, requires covered organizations to meet the substantive requirements of each applicable standard on the timelines set in the standard's regulation. The architecture also requires designated public-sector bodies to prepare, publish, and update accessibility plans on a defined cycle, with public consultation requirements built into the plan-development process.

The compliance monitoring is conducted primarily through the Accessibility Compliance Secretariat. The Secretariat reviews accessibility plans, audits self-reported compliance, investigates complaints from members of the public, and refers serious non-compliance matters to the Director for enforcement action.

The enforcement architecture provides the Director with statutory authority to issue compliance orders and to take other enforcement steps against non-compliant organizations. The penalty structure under the AMA is calibrated to Manitoba's smaller economic context but operates on the same principle as Ontario's: monetary penalties are available where compliance orders are not followed, and the cumulative exposure is sufficient to make non-compliance materially undesirable for covered organizations.

The compliance and enforcement record under the AMA has, like the AODA's, been the subject of disability-community advocacy for stronger implementation. The Manitoba disability community has documented the same kinds of implementation gaps the Ontario disability community has documented under the AODA — standards that the community considers narrower than they could be, enforcement that is less aggressive than the legislation makes possible, and pace of standards development that is slower than the disability community considers acceptable. These concerns are real, are documented in public consultation submissions, and are part of the inputs feeding the mandatory five-year reviews of each standard. The reviews themselves are the structural mechanism through which the implementation gaps are surfaced, debated, and addressed.

The relevant point for the Part Two comparison is that Manitoba has the architecture in place to surface and address implementation gaps. Alberta does not. Manitoba's disability community can advocate against documented shortfalls in a structured implementation framework with statutory reviews and a

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defined enforcement mechanism. Alberta's disability community is advocating for the framework to exist at all. The two jurisdictions are not at the same point in the policy lifecycle. Manitoba is in operational implementation. Alberta is in pre-legislative advocacy. Section 2.7 returns to this distinction directly.

The Mandatory Five-Year Review Cycle

Section 11 of the AMA requires that within five years after each accessibility standard is made, and within each subsequent five-year period, the Accessibility Advisory Council must examine the standard's accessibility objectives, the measures and practices set out in the standard, and how and by whom the standard is being implemented. The Council may then develop recommendations for amendments to the standard and submit those recommendations to the Minister.

The mandatory review cycle is significant for two reasons. First, it ensures that each standard, once enacted, remains a living document subject to ongoing improvement based on operational experience and disability-community feedback. The standard does not freeze at the moment of enactment. The five-year cycle is the structural mechanism by which the gap between the standard's original drafting and the operational reality of its implementation can be closed iteratively. Second, the review cycle is statutory, not discretionary. The Minister cannot decline to initiate the review. The Council cannot decline to conduct it. The recommendations cannot be made invisible by ministerial inaction. The review's existence is built into the legislation as a non-negotiable feature.

The first standard to enter the mandatory five-year review cycle was the Accessibility Standard for Customer Service, which was made law in 2015 and reached its first review milestone in 2020 (delayed by the pandemic and subsequently relaunched). The current review, conducted by the Council with public consultation through the EngageMB portal in 2024-2025, has gathered feedback from Manitobans on what is working, what is not, and what should be changed. The review's findings will inform the next iteration of the Standard. The process is the mature operational form of the structure the AMA was designed to produce.

The five-year review cycle is one of the design choices Alberta's eventual blueprint legislation should incorporate, with one specific modification informed by both the Ontario and Manitoba experience. Ontario's three-year independent reviews of the AODA as a whole (Beer 2010, Moran 2014, Onley 2019, Donovan 2023) have produced a comprehensive evaluation of the entire framework; Manitoba's five-year reviews of individual standards have produced more focused operational improvement of each standard. The two approaches are complementary, not competing. Part Three's proposed Alberta legislation will incorporate both: a comprehensive multi-year review of the framework as a whole, and standard-specific reviews on a defined cycle. The lessons of the comparator jurisdictions are taken forward into the design.

What the Manitoba Record Establishes

The AMA's thirteen-year record establishes findings that complement and extend what Section 2.2 documented in Ontario.

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The first is that the legislative model scales down. Manitoba's smaller population, smaller administrative apparatus, and smaller fiscal base have not prevented the province from operationalizing comprehensive accessibility legislation. The model the AODA pioneered has been adapted successfully to a province with one-third Alberta's population. The "we are too small" or "we cannot afford this" objections that might be raised against extending the model to smaller jurisdictions have been answered by Manitoba's operational record.

The second is that the legislative model is politically durable across changes in governing party. The AMA was passed under an NDP government in 2013. It has been administered subsequently under both Progressive Conservative and NDP governments. Neither has repealed the legislation. Both have advanced standards development incrementally during their respective periods in office. The cross-partisan operational continuity demonstrates that comprehensive accessibility legislation, once enacted, ceases to be a partisan question. It becomes the new baseline. Subsequent policy debate is about the pace and quality of implementation, not about whether the legislation should exist.

The third is that the legislative model invites sequential standards development rather than requiring simultaneous full-spectrum implementation. Manitoba began with the Customer Service Standard (most cross-sectorally applicable, most achievable in early phases), proceeded through Employment and Information and Communications, and continues to develop Transportation and Outdoor Public Spaces. The sequential approach is operationally realistic for smaller-capacity administrations and provides a model for Alberta's eventual implementation. The proposed legislation Part Three develops will accommodate sequential standards development on a defined timeline rather than requiring simultaneous comprehensive coverage on day one.

The fourth is the structural argument the comparator analysis is building toward and that Section 2.7 will land directly. Manitoba is not a populous province. Manitoba is not a wealthy province by Alberta standards. Manitoba is not a province whose disability community possesses any structural advantages over Alberta's. Manitoba does not have any unique fiscal capacity, institutional sophistication, or political alignment that has made the AMA possible there in ways that would make it impossible in Alberta. The presence of the AMA in Manitoba and its absence in Alberta is a function of the political choice each province has made — nothing more, nothing less. The arithmetic of provincial comparison defeats every structural argument that has been deployed in Alberta against the introduction of similar legislation. Manitoba built it. Alberta chose not to.

What This Section Establishes

The *Accessibility for Manitobans Act*, 2013 made Manitoba the second Canadian province to enact comprehensive accessibility legislation and the first west of Ontario. The Act passed with cross-party support, has been administered subsequently under both NDP and Progressive Conservative provincial governments, and has produced thirteen years of operational implementation across five accessibility standards (two enacted, two in development as of 2026). The Act creates a multi-institution implementation framework anchored by the Accessibility Advisory Council, the Manitoba Accessibility Office, the Accessibility Compliance Secretariat, and a statutorily-appointed Director with enforcement authority. The Act mandates a five-year review of each accessibility standard on a non-discretionary

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timeline. The Act extends accessibility obligations across the public, private, and non-profit sectors.

Manitoba's population is approximately one-third of Alberta's. Manitoba's fiscal capacity is substantially smaller. Manitoba's disability community does not possess any structural advantages that would explain why provincial accessibility legislation exists there and not in Alberta. The presence of the AMA in Manitoba and its absence in Alberta reflects the political choice each province has made about whether to build the architecture comprehensive accessibility legislation provides. Manitoba built. Alberta did not.

Section 2.4 examines the third Canadian province to enact provincial accessibility legislation: Nova Scotia, whose 2017 *Accessibility Act* set the most ambitious binding accessibility deadline of any Canadian jurisdiction — an *accessible by 2030* commitment now five years from its statutory horizon. Nova Scotia's record demonstrates that small Atlantic provinces, with populations comparable to or smaller than several Alberta cities, have built provincial accessibility infrastructure that the entire province of Alberta has not.